AAP LAUNCHES FIGHTBACK

Delhi CM Arvind Kejriwal remains in jail, but his No. 2 Manish Sisodia is out, raising AAP's hopes as the assembly election nears. The beleaguered party is now chalking out its next course of action

By Avishek G. Dastidar


RAJWANT RAWAT

"Today, the truth has won," Delhi minister Atishi said, breaking down while addressing a crowd in the city. It was August 9, and news had just trickled in that Aam Aadmi Party (AAP) second-in-command Manish Sisodia had been granted bail by the Supreme Court 17 months after he was arrested in the excise policy case or 'liquor policy scam', depending on which side of the political divide you were talking to. Sisodia, the former deputy chief minister who was also in charge of the excise department, is at the centre of the case by the Enforcement Directorate (ED) and Central Bureau of Investigation (CBI), which alleges that the party created a new excise policy to benefit a select few and got kickbacks to the tune of hundreds of crores of rupees for it.

For a party whose main leaders have been in jail in phases over the past two years (AAP supremo and chief strategist Arvind Kejriwal is still behind bars), this was a new lease of life barely six months before the Delhi election. Bail may not be acquittal, but there is no case beyond it. "The whole case was about the bail. Because it has no merit. That's why they have created some 20,000 pages of a chargesheet, a huge list of witnesses. All this to keep dragging the trial and opposing the bail," he told INDIA TODAY after coming out of jail (see interview *'Politics is a long game...*). Sisodia believes the provisions of the Prevention of Money Laundering Act (PMLA) were invoked only to make bail difficult. "This kind of law is to stop funding for terrorists, it's not to deny ordinary people bail."

For the moment, there is some relief in the AAP camp. For Kejriwal, though, it remains only on paper. The Supreme Court granted him interim bail in the ED's money-laundering case on July 12, but he continues to be in jail for his 'arrest' by the CBI two weeks earlier, on June 26, for corruption and criminal conspiracy. Congress leader and senior lawyer Abhishek Manu Singhvi called it an "insurance arrest". "Knowing our arguments and the weakness of theirs, the central government apprehended an adverse order (the SC directive on July 12) and so the CBI arrested Kejriwal after one full year; after interrogating him one year ago and while he was in ED custody," the Delhi chief minister's legal counsel posted on microblogging site X on July 12.

By now, it's a complex legal saga that has been playing out in the lower courts, the high court and the apex court for two years now. The latest twist is the supplementary chargesheet filed in the case, where the ED has named Kejriwal and AAP as accused No. 37 and 38, respectively. As per the ED, Kejriwal is the 'kingpin and mastermind' of the operation. The ED has been probing the case for over 20 months now. It has identified 40 accused after some 250 raids across India and made 16 arrests so far. The crux of the inquiry is that AAP